

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL
COMPLAINANT’S PROPOSED VERIFIED FIRST AMENDED COMPLAINT**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on July 28, 2023, *see* Dkt. 20 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer an unredacted copy of its proposed Verified First Amended Complaint (“FAC”) and file on the public docket of this case a redacted copy of the FAC.¹

PROCEDURAL HISTORY

Complainant filed its Verified Complaint in this case with the Secretary of the Commission on April 21, 2023. The Secretary of the Commission served a Notice of Filing of Complaint and Assignment on April 27, 2023. Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents” and, collectively with Complainant, the “Parties”)

¹ Complainant’s counsel has contacted Respondents’ counsel and they do not oppose this motion.

filed their Verified Answer on May 22, 2023. On July 28, 2023, the Presiding Officer issued an Order entering the Protective Order to govern discovery in this case.

REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

Complainant's proposed FAC filed herewith contains and refers to material designated by Respondents as Confidential or Attorneys Eyes Only ("AEO") pursuant to the Protective Order. This motion to file an unredacted copy of the proposed FAC with the Presiding Officer under seal (and a redacted copy on the public docket of this case) is thus necessitated by the requirements of the Protective Order, which mandates such filings for any documents containing confidential information as designated by the Parties. By separate and contemporaneously filed Motion Challenging the Respondents' Confidentiality Designations of Certain Documents (the "Confidentiality Challenge Motion"), Complainant is seeking an order from the Presiding Officer removing the Confidential and AEO designations from the material contained in and referred to in the proposed FAC, which would allow the FAC to be filed publicly in unredacted form.

In short, the Protective Order provides for designation as Confidential of documents that contain information either commercially sensitive or otherwise unknown to the public, and for designation as AEO of documents that contain information that could harm the competitive or privacy interests of the designating party if disclosed beyond outside counsel for other parties. In producing the documents at issue in response to Complainant's discovery requests in this case, Respondents marked them as Confidential or AEO pursuant to the Protective Order. Complainant requested that Respondents meet and confer regarding potential revision of the designation of the documents at issue, but Respondents declined, instead indicating without discussion that they would not consent to the public filing of the proposed Verified First Amended Complaint in

unredacted form and intended to oppose Complainant's motion for permission to file the proposed FAC.

Thus, consistent with the requirements of the Protective Order in this case, Complainant seeks by the instant motion leave to file its proposed FAC under seal pending the Presiding Officer's decision on the Confidentiality Challenge Motion.

Dated: July 8, 2024

Respectfully submitted,

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Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

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Dated: July 8, 2024



J. Lee Hill

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